that Nehru resisted the pressure and persuasion. One report from May 1951 praised him for declining to amend the Constitution 'to please Madras', with a 'fine disregard for electoral fortunes'.[24] However, that disregard for electoral success did not hold out for long. Within days, an amendment that would effectively nullify the court's decision was included in the bill to make the first amendment to the Constitution, which was being formulated at the time.

There was a menu of options available to the central government in terms of how the Constitution could be amended to nullify the decision. These options included making amendments to Article 15 and Article 29, whether by amending existing clauses within those articles or adding new ones. Among those that advised the government on the form that the constitutional amendment should take was none other than Alladi Krishnaswamy Iyer, the lawyer who secured a favourable decision for Dorairajan.[25] The formula that was included in the bill added a new clause to Article 15, which provided that neither Article 15 nor Article 29(2) would prevent the state from making special provisions for the 'educational, economic and social' interests of the backward classes.[26]

Since the first general elections were scheduled to take place only in the winter of 1951, this amendment arose for discussion in the provisional Parliament – an 'unusual body'[27] that succeeded (and had broadly the same composition as) the Constituent Assembly. Dr Ambedkar mounted a robust defence of the decision to nullify the Supreme Court's judgement, arguing that the court had misinterpreted the text and scheme of the Constitution. With reference to the text, the court had overlooked the use of the word 'only' in Article 29(2), which ought to have meant that the constitutional prohibition was on deploying caste as the exclusive parameter for discriminating between applicants. No discrimination could be alleged when other parameters, such as economic status and levels of education, were also taken into account. More broadly, the Supreme Court had misread the scheme of the Constitution by making fundamental rights a stumbling block in the advancement of the backward classes.